RETURN ADDRESS:

Clark Public Utilities
Attn: ROW Dept.
P.O. Box 8900
Vancouver, WA 98668

Document:	Utility Easement
Grantor:	Vancouver School District No. 37
Grantee:	PUD No. 1 of Clark County
Legal Desc.:	4TH PLAIN HD LOTS #2 #3 #5 #8 #10 of Lot 32 & #6 #7 Lot 31
Serial No.	105030-000
Geo No.	2208331, 2208332, 2208333, 2208334
Engineer:	R. Engelbart
WR:	542347

EASEMENT AND RIGHT OF WAY
UTILITY EASEMENT

The GRANTOR(S), **VANCOUVER SCHOOL DISTRICT NO. 37, a corporation of the state of Washington,** for and in consideration of mutual benefits, hereby acknowledged, does grant and convey to **PUBLIC UTILITY DISTRICT NO. 1 OF CLARK COUNTY, a municipal corporation of the state of Washington,** GRANTEE, its successors and assigns, including joint users, a non-exclusive, perpetual easement and right of way, ten (10) feet in width, together with the right of ingress and egress for the purpose of installing, constructing, erecting, altering, repairing, maintaining and operating thereon and therein an electric system, facilities and appurtenances including communication and service conductors, with surface-mounted transformer(s) and appurtenances necessary thereto, together with the right and easement to tap into said facilities to serve adjacent and/or adjoining lands, in, on, over, under and across the lands in Clark County, Washington, described as follows:

> **A portion of #2, 3, 5, 8 and 10 of Lot 32 and #6 and 7 of Lot 31 of FOURTH PLAIN HOMESTEAD LOTS in the SW ¼ of Section 08, Township 2 North, Range 2 East of the Willamette Meridian, APN 105030-000, Clark County, Washington, more particularly described and shown on the attached Exhibits "A" and "B", by this reference made a part hereof**

Upon completion of installation of all facilities, THE EASEMENT HEREIN GRANTED SHALL BE CENTERED ON AND LIMITED TO THE LOCATION OF THE FACILITIES AS PLACED WITH REASONABLE RIGHTS OF INGRESS AND EGRESS FOR THE PURPOSES ABOVE STATED.

The Grantor covenants for itself successors and assigns that it will not build or place, or allow to be built or placed, any structure of any kind over the easement granted herein without written approval of Grantee. PUBLIC UTILITY DISTRICT NO 1 OF CLARK COUNTY has the right at all times to cut and/or trim all brush, trees or other growth standing or growing upon the lands of the Grantor which, in the opinion of the Grantee, constitute a menace or danger to said electric system facilities.

The Grantor also covenants to and with the Grantee that Grantor has the right and power to convey an Easement and Right of Way over the tract of land described herein.

DATED this _____ day of _____, 2021

VANCOUVER SCHOOL DISTRICT NO. 37,
a municipal corporation of the state of Washington

By: _____

Its: _____

STATE OF WASHINGTON)
: ss
County of _____)

On this _____ day of _____, 2021 before me personally appeared _____ to me known to be the duly executed qualified and acting _____ of **VANCOUVER SCHOOL DISTRICT NO. 37** of Clark County, Washington, that executed the within and foregoing instrument and acknowledged said instrument to be the free and voluntary act and deed of said School District for the uses and purposes therein mentioned, and on oath stated that he/she is authorized to execute the said instrument.

GIVEN under my hand and official seal the day and year last above written.

_____
Notary Public in and for the State of
Washington, residing at _____

My commission expires _____

EXHIBIT "A"

Property Description:

PERIMETER DESCRIPTION FOR VANCOUVER SCHOOL DISTRICT NO. 37 WALNUT GROVE ELEMENTARY

A parcel of land in a portion of the Southwest quarter of the Southwest quarter of Section 8, Township 2 North, Range 2 East, Willamette Meridian, City of Vancouver, Clark County, Washington, more particularly described as follows;

BEGINNING at the Southwest corner of said Section 8, as described and recorded in L.C.R. Book 14, at Page 109, records of Clark County, Washington;

Thence North 01°25'00" East, along the West line of the Southwest quarter of said Section 8 for a distance of 415.32 feet;

Thence leaving said West line, South 88°34'08" East, for a distance of 30.00 feet, to the Easterly Right-of-Way line of NE 72nd Avenue and the **TRUE POINT OF BEGINNING:**

Thence along said Easterly Right-of-Way line the following courses and distances:

Thence North 01°25'00" East, for a distance of 165.10 feet;

Thence North 46°47'24" East, for a distance of 15.46 feet;

Thence North 01°25'00" East, for a distance of 229.26 feet;

Thence North 04°03'20" West, for a distance of 115.69 feet;

Thence North 01°26'23" East, for a distance of 56.56 feet;

Thence leaving said Easterly Right-of-Way line, South 88°47'39" East, for a distance of 631.13 feet;

Thence South 01°27'25" West, for a distance of 131.09 feet;

Thence South 88°49'09" East, for a distance of 330.52 feet;

Thence South 01°28'37" West, for a distance of 200.00 feet;

Thence North 88°49'09" West, for a distance of 0.45 feet;

Thence South 01°27'25" West, for a distance of 250.33 feet;

Thence North 88°50'39" West, for a distance of 330.00 feet;

Thence North 01°27'25" East, for a distance of 2.14 feet;

Thence North 88°34'08" West, for a distance of 630.71 feet and the **TRUE POINT OF BEGINNING.**

CONTAINING 510,299 square feet, or 11.71 acres, more or less.

TOGETHER with and **SUBJECT** to easements, reservations, covenants and restrictions apparent or of record.

Which has an address of: Walnut Grove Elementary School, 6103 NE 72nd Ave., Vancouver, WA

Easement Description:

An easement for electrical facilities, 10 feet in width, as placed near and along the West property line and across the Northwest portion of the above described property. The general location is shown on Exhibit "B" and said easement herein granted shall be limited to the location of the facilities as installed with reasonable rights of ingress and egress for the purposes above stated.
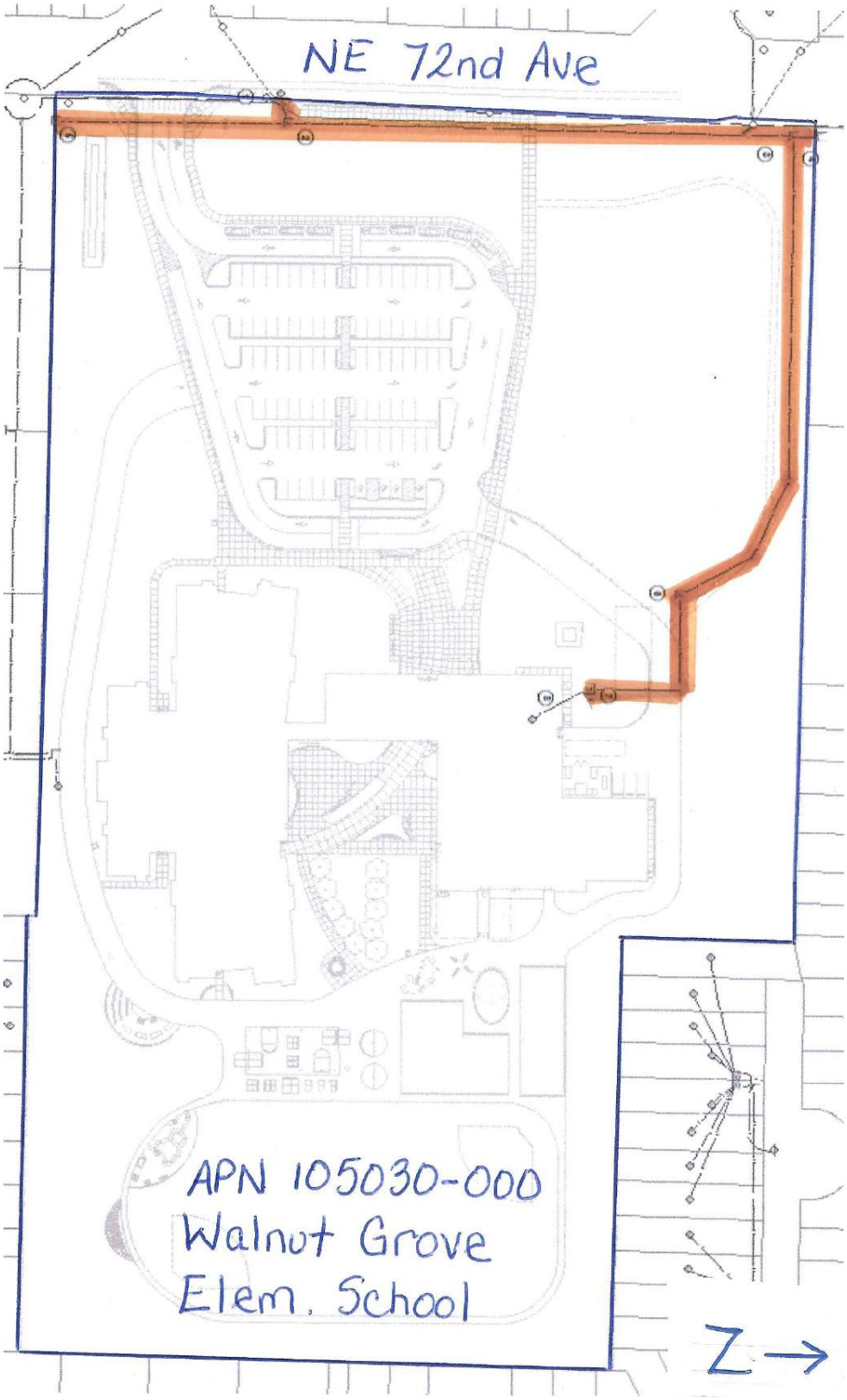
EXHIBIT "B"